

LEGISLATURE OF NEBRASKA
ONE HUNDRED NINTH LEGISLATURE
SECOND SESSION

LEGISLATIVE BILL 727

Introduced by Kauth, 31.

Read first time January 07, 2026

Committee:

- 1 A BILL FOR AN ACT relating to law enforcement; to authorize law
- 2 enforcement agencies to obtain, maintain, and possess epinephrine
- 3 autoinjectors for use by a law enforcement officer as prescribed; to
- 4 require training; and to provide powers and duties to the Department
- 5 of Health and Human Services.
- 6 Be it enacted by the people of the State of Nebraska,

1 **Section 1.** (1) For purposes of this section:

2 (a) Administer means the direct application of an epinephrine
3 autoinjector to the body of an individual;

4 (b) Department means the Department of Health and Human Services;

5 (c) Epinephrine autoinjector means a single-use device used for the
6 automatic injection of a premeasured dose of epinephrine into the human
7 body;

8 (d) Law enforcement agency means the police department or town
9 marshal in incorporated municipalities, the office of the sheriff in
10 unincorporated areas, and the Nebraska State Patrol; and

11 (e) Law enforcement officer means any member of the Nebraska State
12 Patrol, any county or deputy sheriff, any member of the police force of
13 any city or village, or any other public official authorized by a city or
14 village to enforce state or local laws, rules, regulations, or
15 ordinances.

16 (2) Subject to the requirements of this section and any rules and
17 regulations of the department:

18 (a) A law enforcement agency may obtain, maintain, and possess
19 epinephrine autoinjectors to be provided to or made available to such
20 agency's law enforcement officers pursuant to this section for use while
21 in the performance of official duties; and

22 (b) A law enforcement officer may administer an epinephrine
23 autoinjector in response to an emergency situation while in the
24 performance of such officer's official duties.

25 (3) The department shall, in consultation with law enforcement
26 agencies, approve one or more educational training programs relating to
27 responding to an anaphylaxis event, including the use of an epinephrine
28 autoinjector, that law enforcement officers may take in order to be
29 provided and administer an epinephrine autoinjector pursuant to this
30 section. Any such program shall provide a law enforcement officer with a
31 certificate of completion for successful completion of such program.

1 (4)(a) A law enforcement agency shall not provide or make available
2 an epinephrine autoinjector to a law enforcement officer until such
3 officer has provided such law enforcement agency with a copy of a
4 certificate of completion of a program described in subsection (3) of
5 this section.

6 (b) A law enforcement officer shall complete an approved educational
7 training program pursuant to subsection (3) of this section and provide a
8 certificate of completion to the officer's agency prior to administering
9 an epinephrine autoinjector in the performance of such officer's official
10 duties.

11 (5) Nothing in this section shall require:

12 (a) A law enforcement agency to obtain epinephrine autoinjectors and
13 make such autoinjectors available to law enforcement officers; or

14 (b) A law enforcement officer to carry or administer an epinephrine
15 autoinjector.

16 (6) The Department of Health and Human Services may adopt and
17 promulgate rules and regulations to carry out this section.